

HOUSE No. 5561

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 6, 2026.

The committee on Ways and Means, to whom was referred the Bill relative to a certain parcel of land in the town of Norton (House, No. 4660), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5561).

For the committee,

AARON MICHLEWITZ.

HOUSE No. 5561

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the commissioner of capital asset management and maintenance to transfer certain parcels of land in the town of Norton.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to transfer certain parcels of land in the town of Norton, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding sections 32 to 37, inclusive, of chapter 7C of the General
2 Laws or any other general or special law to the contrary, the commissioner of capital asset
3 management and maintenance, in consultation with the commissioner of fish and game, for the
4 purposes of confirming title in the Massachusetts Department of Transportation relative to a
5 continuing interest of the Federal Highway Administration, may transfer all its right, title and
6 interest, if any, to a parcel of land in the town of Norton that is more particularly described as
7 containing approximately 6.927 acres of land and is identified on the town of Norton assessor's
8 parcel 11-14-01 to the Massachusetts Department of Transportation. The current use of the
9 parcel is for wildlife management under the division of fisheries and wildlife pursuant to a care
10 and control agreement dated August 13, 2004. The parcel is to be used by the Massachusetts
11 Department of Transportation pursuant to its statutory authority. The commissioner of capital

asset management and maintenance, in consultation with the commissioner of fish and game and the Massachusetts Department of Transportation, shall determine the exact boundaries of the parcel.

SECTION 2. Notwithstanding chapter 6C of the General Laws or any other general or special law to the contrary, the Massachusetts Department of Transportation shall, as a condition of the transfer in section 1, obtain any necessary approvals for a transfer from the Federal Highway Administration and shall transfer to the commonwealth, under the care and control of the department of fish and game, a certain parcel of land owned by the Massachusetts Department of Transportation containing approximately 7.5 acres of land located along the Canoe river, being a portion of the town of Norton assessor's parcel 11-15-00 and shown on a sketch plan on file with the Massachusetts Department of Transportation, for fish and wildlife conservation, natural habitat protection, associated public recreation and other purposes consistent therewith. The commissioner of capital asset management and maintenance, in consultation with the secretary of the Massachusetts Department of Transportation, shall determine the exact boundaries of the parcel including by conducting a survey if necessary.

SECTION 3. The Massachusetts Department of Transportation, in consultation with the commissioner of fish and game, shall, as a condition of the transfer described in section 1 and as part of a future development of the parcel described in section 1, design and construct or cause to be constructed a roadway or other paved access through the future development, parking area or other amenities as are reasonable and appropriate to provide public access to the parcel described in section 2.

33 SECTION 4. The Massachusetts Department of Transportation shall assume all costs and
34 expenses associated with the transfers authorized in this act including, but not limited to, the
35 costs of any engineering, surveys, appraisals, title examinations, recording fees and deed
36 preparation related to the conveyance of the parcels; provided, however, that the Massachusetts
37 Department of Transportation and the department of fish and game shall not be required to pay
38 any monetary consideration for the transfer authorized by this act.